



File No.: EXP202305368

RESOLUTION OF RIGHTS PROCEDURE

Once the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD) have been carried out, the following FACTS have been established:

FIRST: Ms. A.A.A. (hereinafter, the claimant), dissatisfied with the service contracted with VODAFONE ESPAÑA, S.A.U. (hereinafter, the respondent), requested access to the recording of the call made during the verbal contract for the services with the operator, receiving a response indicating that "upon verifying in the system, we confirm that we do not have a recorded recording, therefore we cannot carry out any verification."

She provides a copy of the request for the recording, dated January 20, 2023, as well as the response to it.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations, with no record of any written submission.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claimant's requests were satisfied. Consequently, after the established period of three months had elapsed, and considering that the complaint was submitted to this Agency on March 10, 2023, the procedure for addressing the request for the exercise of rights is considered initiated on June 10, 2023.

The respondent was granted a hearing period, to present any arguments deemed appropriate within ten working days, summarizing that "(...) it has been verified that, indeed, the claimant has sent to Vodafone, in the context of her dissatisfaction with the terms of the service contract formalized with Vodafone, various requests including the request for access to the recording of the telephone interactions made with Vodafone's Customer Service. These requests were received and addressed by my client, responding to each of her requests, as can be evidenced by the interactions maintained with Vodafone's Customer Service, which are attached as Document number 1.

Once this Agency received the present information request and despite having addressed in a timely manner the various issues and requests raised by the claimant regarding the services contracted with this entity, my client has proceeded to send a new communication, in which a response is given to her request for the exercise of the right of access, informing her of the impossibility of sending her the recording of the telephone interactions with Vodafone's Customer Service, due to an error in the registration and storage of this recording in Vodafone's internal systems. In any case, evidence of the contracted services is provided to the claimant.

Attached as Document number 2 is a copy of the new communication sent to Ms. A.A.A., informing her of the actions taken by my client and providing evidence of the contract. Additionally, attached as Document number 3 is evidence of the conditions of the contracted services sent by email to the claimant."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within ten working days, she may formulate any arguments she considers appropriate, without submitting any arguments within the established timeframe.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data

Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by an interested party and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its tasks.

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the performance of their functions. In the event that they have appointed a data protection officer, Article 39 of the GDPR assigns to this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to provide evidence of having given the complainant the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on June 10, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the submitted complaint was admitted for processing. This admission for processing determines the opening of the present procedure for failure to attend to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the failure to attend to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the data controller or processor to attend to the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

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In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must state its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. Furthermore, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

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V

Conclusion

In the present case, from the examination of the documentation provided by the parties, it has been established that the claimant requested the recording of the telephone call in which they contracted the services with the defendant entity, receiving the response that "(...) we do not have a recorded recording, so we cannot carry out any verification."

During the processing of this procedure, the defendant has stated that they responded to the claimant. However, they have sent a new communication via email informing the claimant of the impossibility of sending the recording as it cannot be obtained from their internal systems, and they have attached evidence of the contract made and a copy of the conditions of the contracted services, providing a

copy of the email sent.

While it is true that the claimant requested the telephone recording, and that the defendant responded indicating that it was not possible to locate it, from the claimant's request it can be inferred that this request was to verify the contractual conditions, which have been provided during the processing of this procedure.

Therefore, considering that the rights procedure aims to ensure that the guarantees and rights of the affected parties are duly restored, combining the information in the file with the regulations referred to in the preceding sections, it is appropriate to uphold this claim for formal reasons, as the response was issued late, without requiring additional actions by the data controller in order to issue a new certification regarding the exercise of the right.

It should be noted that this Agency is not competent to resolve civil issues, such as those related to the civil or commercial validity of the contract, the accuracy of the debt amount, the proper provision of contracted services, or the interpretation of contractual clauses, as its competence is limited to determining whether the legal and regulatory requirements established for data processing have been met, without conducting inquiries typical of the civil sphere. The determination of the legitimacy of a debt based on an interpretation of the contract signed between the parties and its correct amount must be pursued before the competent administrative or judicial bodies, as it exceeds the competence of this Agency.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the claim made by Ms. A.A.A. against VODAFONE ESPAÑA, S.A.U. However, it is not appropriate to issue a new certification by the defendant, as the response was issued late, without requiring additional actions by the responsible party.

SECOND: TO NOTIFY this resolution to Ms. A.A.A. and to VODAFONE ESPAÑA, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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